

While some of the affirmative defenses are expressly negated by the admissions made as part of the Deemed Admitted Order, others are not. For example, the Answer pleads the defenses of “Unjust Enrichment.” See Answer, p. 3. There is no RFA which admitted that this particular affirmative defense is without merit or otherwise constituted any admission that all of the pled affirmative defenses are without merit. See RJN, **Exhibit 1**, RFAs Nos. 1 through 13.

Nonetheless, the Court concludes here that the admissions made to the effect that “[t]he principal amount of \$10,548.81 due set forth in the Complaint filed in this matter is correct” and “[e]very statement or allegation contained in Plaintiff’s Complaint is true and correct” necessarily encompass an admission of no cognizable defense to the liability, especially in the absence of any opposition and showing to the contrary by Defendant.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff’s Complaint, on its face and considering the Deemed Admitted Order, states facts sufficient to constitute causes of action against the Defendant for Common Counts (1st Cause of Action). As to the 1st Cause of Action for Common Counts, the Court finds that pleadings are sufficient to constitute a cause of action based on a theory of Account Stated. The Court need not consider the other alternative theories of liability.
2. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint, as to Plaintiff’s 1st Cause of Action.
3. Defendant became indebted in the amount of \$10,548.81 on the subject credit card account, which amount is due and owing to Plaintiff.

Costs

The moving papers seek an award of recoverable costs in the sum of \$777.00. However, it does not appear that any Memorandum of Costs or other supporting declaration(s) regarding costs were filed as part of the moving papers. Any recoverable costs may be sought by a timely filed Memorandum of Costs or otherwise in accordance with applicable law.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. The trial date of April 8, 2026 is VACATED.
3. A proposed form of order was lodged with the Court which the Court shall execute and enter.

4. 9:00 AM CASE NUMBER: L24-05801
CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. YAMESE PARKERSMITH
***HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT UNDER STIP FILED BY PLNTF ON**

8/7/25

FILED BY:

TENTATIVE RULING:

Plaintiff Portfolio Recovery Associates, LLC ("Plaintiff") filed a Motion to Enter Judgment under Terms of Stipulated Settlement on August 7, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on October 28, 2025.

Plaintiff appeared and confirmed that notice of the hearing date had not been given to Defendant and, therefore, the Court continued the matter to December 2, 2025, 9:00 a.m. in Department 34 of the Court to ensure that notice has properly been given to the Defendant. Plaintiff was ordered to give notice to Defendant of this continued hearing date on the pending motion. See Order entered November 10, 2025.

No further filings of record on the Court's docket indicate that any such notice was given by Plaintiff to Defendant. An Amended Notice of Motion now appears on the Court's docket with a filing date of October 3, 2025, with notice of the prior October 28, 2025 date. However, no further Amended Notice of Motion appears with notice of the current December 2, 2025 hearing date.

Counsel for Plaintiff appeared at the December 2nd hearing and acknowledged that no further notice had given of the new December 2nd hearing date and requested a further opportunity to give timely notice and have this matter heard. **The Court continued the matter again to December 30, 2025, 9:00 a.m. in Department 34. Plaintiff was ordered to give notice of the new hearing date to Defendant forthwith.** See Minutes entered December 2, 2025.

No further filings of record on the Court's docket indicate that any such notice was given by Plaintiff to Defendant. No amended notice of motion appears on the Court's docket.

Background

The parties entered into that certain settlement agreement filed on November 1, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant Yamese Parkersmith ("Defendant") in the amount of \$4,354.42 plus costs, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Request for Judicial Notice filed August 7, 2025 ("RJN"), **Exhibit B**, Settlement Agreement, ¶¶1-4; see also Declaration filed as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶¶2-3. The Court hereby takes judicial notice of the Settlement Agreement. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. See Settlement Agreement, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. Supporting Declaration, ¶4. Defendant failed to cure after notice. *Id.* at ¶5 and **Exhibit A** thereto.

After credit for amounts paid, there remains \$4,154.42 due and owing, plus costs of \$495.61, for a total of \$4,650.03. See Supporting Declaration, ¶¶6-7.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

- 1. The Motion to Enter Stipulated Judgment after Default is DROPPED from calendar.**

5. 9:00 AM CASE NUMBER: L25-03679

CASE NAME: BANK OF AMERICA N.A. VS. TENISHA GARDNER

***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED ANSWER AND TO ADD X-COMPLAINT; MPA; DEC OF T. GARDNER**

FILED BY:

TENTATIVE RULING:

Defendant Tenisha M Gardner ("Defendant") filed a Motion for Leave to File First Amended Answer and to add Cross-Complaint on November 12, 2025 (the "Motion for Leave to File"). The Motion for Leave to File was set for hearing on December 30, 2025.

Background

Plaintiff Bank of America, N.A. ("Plaintiff") filed its Complaint on April 4, 2025 (the "Complaint"). The Complaint alleges a breach of contract cause of action, contending that Defendant failed to pay an amount due and owing on a credit card account with Plaintiff. See Complaint filed April 4, 2025, pp. 1-2 and Attachment BC-1 through BC-4.

An Answer was filed by Defendant on June 4, 2025 (the "Answer"). The Answer pleads various defenses, including an asserted violation of "the Fair Debt Collection Practices Act ("FDCPA") and Rosenthal Fair Debt Collection Practices Act ("RFDCPA)." See Answer, p. 1, *et seq.*

Defendant seeks leave to file a cross-complaint to assert affirmative claims for the violation of those statutes. See Motion for Leave to File, Memorandum of Points and Authorities, p. 4; see also Declaration of Tenisha M Gardner (the "Supporting Declaration"), ¶1 *et seq.*

Plaintiff filed an opposition brief. See Opposition to Defendant's Motion for Leave of Court to File Amended Answer and to Add Cross-Complaint filed December 16, 2025 (the "Opposition").

Analysis

1. Service of the Motion Papers

As an initial matter, Plaintiff contends that Defendant failed to properly serve the Motion for Leave to File because she served her court papers herself. See Opposition, p. 2.

Plaintiff fails to cite any supporting evidence for this contention and, indeed, appears to materially misrepresent the record on this motion. Plaintiff's motion states "Defendant continues to serve documents, including this motion, by herself." See Opposition, p. 2.

Defendant's Proof of Service indicates that the Motion for Leave to File was served by a person named Arelious Jones, not Defendant herself. See Proof of Service filed November 19, 2025.